

		Finally, Defendant argues that the 10% monthly late fee that Plaintiff seeks as part of its damages constitutes an unenforceable penalty and Plaintiff has provided no indication that the 10% monthly late fee has any bearing to the amount of damages delinquent payments would pose to them. However, it is the defendant's burden to establish that a liquidated damages provision is unreasonable and invalid. (Gormley v. Gonzalez (2022) 84 Cal.App.5th 72, 82.) And an analysis of Defendant's arguments against the 10% monthly late fee would require the Court to consider matters beyond the face of the pleading or matters which may be judicially noticed. The demurrer is OVERRULED. The motion to strike is DENIED. Defendant shall have 20 days to answer the complaint
110	Simplified Builders, Inc. vs. Tran, 2022-01297068	Motion to Be Relieved as Counsel of Record -GRANTED The motion of attorney Edward Freedman of the Law Offices of Edward W. Freedman to be relieved as counsel for Plaintiff/Cross-defendant Simplified Builders, Inc. is GRANTED. Service on the client and on all other parties who have appeared in the case was proper and all required forms containing the requisite information were filed pursuant to California Rules of Court, rule 3.1362. Importantly, a corporation must be represented in court by an attorney. As such, Plaintiff/Cross-Defendant Simplified Builders, Inc. is ORDERED to obtain new counsel within a reasonable time. (CLD Constr., Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1150 ["[T]he court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable time."].) The order will take effect once moving attorney files proof of service of the signed order (MC-053) on the client.

		This order does not relieve Plaintiff/Cross-Defendant from any existing court orders, nor does it affect any pending dates, including but not limited to the informal discovery conference or the trial. Moving attorney to give notice.
111	Watkins vs. FCA US, LLC, 2023-01364783	Motion for Summary Judgment – DENIED Motion for Summary Adjudication – GRANTED IN PART AND DENIED IN PART Plaintiffs’ 1st, 2nd, 3rd, and 4th causes of action arise under the Song-Beverly Consumer Warranty Act, Civil Code section 1790 et seq. (the Act). The Act applies only to goods purchased within California. (Cummins, Inc. v. Superior Court (2005) 36 Cal.4th 478, 483 [“the Act does not apply unless the vehicle was purchased in California”]; Davis v. Newmar Corp. (2006) 136 Cal.App.4th 275, 278 [“Because title passed outside of California, the Act does not apply”]; Gaynor v. W. Rec. Vehicles, Inc. (C.D. Cal. 2007) 473 F.Supp.2d 1060, 1062 [“Application of the Song-Beverly Act is expressly limited to goods sold in California.”]; Barabino v. Dan Gamel, Inc. (E.D.Cal. July 25, 2006) 2006 U.S.Dist. Lexis 50722 at *8 [“California law is clear that where title passes outside of California, the Song-Beverly Act does not apply.”]; see 4 Witkin, Summary of Cal. Law, Sales § 327.) “A sale is deemed completed and consummated when the purchaser of the vehicle has paid the purchase price, or, in lieu thereof, has signed a purchase contract or security agreement, and has taken physical possession or delivery of the vehicle.” (Veh. Code § 5901, subd. (d).) It is undisputed that the sale of the vehicle in question was purchased in Nevada. (UMF 1, 2) Defendant has therefore met its burden under Code of Civil Procedure section 437c, subdivision (p)(2) to establish there is a complete defense to these causes of action, namely lack of standing. Plaintiff has failed to establish via admissible evidence a triable issue of material fact. Plaintiff’s argument about the government interest test is irrelevant because this is an issue of standing, not choice of law. Plaintiff’s argument that there is no